IN THE HIGH COURT FOR THE STATE OF TELANGANA AT HYDERABAD

THURSDAY, THE TWENTY FIFTH DAY OF JUNE
TWO THOUSAND AND TWENTY SIX

PRESENT

THE HONOURABLE SMT JUSTICE JUVVADI SRIDEVI

CRIMINAL APPEAL No: 741 of 2016

Petition under Section 378 (4) (5) & (1) of Cr.P.C against the Judgment dated 17/12/2012 passed in C.C.No.275/2007 on the file of the Additional Judicial Magistrate of First Class, Huzurabad.

Between:

The Food Inspector, rep. by The Public Prosecutor, High Court at Hyderabad.

...Petitioner/Appellant

AND

Thammishetti Venkata Ramana, S/o. Late Venkat Narayana, Age 40 yrs, Proprietor of M/s. Tirumala Oil Mill, Rekonda Village, Chigurumamidi Mandal, Karimnagar District.

...Accused/Respondent

Counsel for the Appellant: SRI M VIVEKANANDA REDDY, ASSISTANT PUBLIC PROSECUTOR

Counsel for the Respondent: SRI Y NARAPA REDDY

The Court delivered the following: JUDGMENT

IN THE HIGH COURT FOR THE STATE OF TELANGANA AT HYDERABAD

THE HONOURABLE SMT. JUSTICE JUVVADI SRIDEVI

CRIMINAL APPEAL No.741 of 2016

DATED: 25TH JUNE, 2026

Between:

The Food Inspector, rep. by the Public Prosecutor, High Court at Hyderabad ...Appellant/Petitioner

AND

Thammishetti Venkata Ramana ...Respondent/Accused

J U D G M E N T:

This Criminal Appeal has been filed by the State, aggrieved by the Judgment passed by the learned Additional Judicial Magistrate of First Class at Huzurabad in C.C.No.275 of 2007 dated 17.12.2012, whereunder respondent/accused was acquitted for the offences punishable under Sections 16(1) (a) (i) 7(i) and 2 (ia) (m) of PFA Act, 1954.

02. Heard Mr.M.Vivekananda Reddy, learned Assistant Public Prosecutor for the appellant/State and Mr.Y.Narapa Reddy, learned counsel for the respondent/accused.

03(a). The case of prosecution in brief is that on 12.12.2006 at about 3.30 p.m., the Food Inspector Div-1, Karimnagar and his

attender inspected the premises of M/s. Thirumala Oil Mill, Rekonda village, Chigurumamidi Mandal, Karimnagar District. At the time of inspection, the accused is proprietor of the said mill was present and transacting the business. Then the LW1 secured the mediator Thatla Rajaiah to act as panch witness. The LW-1 inspected the said mill in the presence of LW1, during the course of inspection, LW.1 found 250 Kgs of ground nut oil (loose) found in iron barrels for sale to public for human consumption. On suspicious, LW.1 purchased 750 Gms of Ground Nut Oil (loose) from 100 KGs opened barrel and paid its cost of Rs.96/- and obtained cash receipt and acknowledge the signature of vendor and witness. Then purchased 750 Gms of ground nut oil (loose) divided into 3 equal parts and each part 250 Gms poured into clean dry and empty plastic bottles and closed with its lids, tied with strong tine and then sealed. Then LW.1 obtained the signature of accused on each sample parts.

03(b).A panchanama was drafted by Food Inspector explaining the Inspector done in brief, in the presence of accused and LW2, read over and explained to them and they were signed on it after satisfying themselves. On 13.12.2006 LW1 sent one part of sample along with a copy of Form-VII memorandum with specimen impression of the

seal used in sealing the sample parts in a sealed package to the public analyst, Hyderabad for analysis in four folios to the State Local (Health) Authority, Hyderabad and forwarded to the LW1 for necessary action. In the report of analysis the Public Analyst opined that the sample does not confirm to the standards of Red Units in respect of Baudouin's test. Hence, it was adulterated as per Section 2(ia)(m) of Prevention of Food Adulteration Act, 1954. Thereby, the accused committed the alleged offences.

04. Learned Assistant Public Prosecutor submitted that the learned trial Court, without properly considering the oral and documentary evidence adduced by the prosecution, erroneously acquitted the respondent/accused. The prosecution had proved the case beyond reasonable doubt that the respondent/accused has committed the offences. He further submitted that the respondent/accused acknowledged the sale of the sample and he did not contend that he is not the owner of the oil mill, secondly there need not be any evidence to show that the adulterated oil is injurious to health and thirdly there is no evidence to show that the accused was prejudiced by the delay of lodging the complaint, so as to acquit the accused. Hence, the ingredients of the under Sections 16(1) (a) (i)

7(i) and 2 (ia) (m) of PFA Act, 1954 are attracted. The trial Court, without taking into consideration the ingredients of Sections under Sections 16(1) (a) (i) 7(i) and 2 (ia) (m) of PFA Act, 1954, passed the impugned judgment and acquitted the respondent/accused and the same is contrary to settled principles of law, and therefore, the judgment of the trial Court is liable to be set aside, and the respondent/accused is liable to be convicted for the alleged offences.

05. Per contra, the learned counsel for the respondent/accused vehemently contended that the trial Court, after considering the oral and documentary evidence on record and after hearing the parties, rightly acquitted the respondent/accused for the alleged offences and given specific findings. He further submitted that the prosecution has failed to prove the alleged offences against the respondent/accused beyond reasonable doubt. He further submitted that according to Section 7 of the Act prosecution failed to prove the proof of the ownership of the mill. According to 7(i)2(ia) of the act the seized oil should be produced before the Court within 7 days. Moreover, there is a delay of 185 days of filing the case by prosecution Section 13(2) is not followed. On the date of PW1 chief examination, the notices were served on the accused. According to

Section 14(A) within 10 days of the receiving the analyst report the same has to be sent to the accused but it was not sent. The Food Inspector has not followed the Section 16(B). He further submitted that there are no grounds to interfere with the well considered judgment of the learned Magistrate, and therefore, the appeal filed by the State is liable to be dismissed.

06. Having considered the rival submissions made by the respective parties and after perusal of the impugned judgment passed by the trial Court, it reveals that on behalf of the prosecution PWs.1 and 2 were examined and Exs.P1 to P17 were marked. After evaluating the oral and documentary evidence on record, the trial Court rightly came to the conclusion that the prosecution miserably failed to prove the offences levelled against the respondent/accused. The learned Magistrate has assigned cogent and well-reasoned findings in Paragraph No.14 of the impugned judgment, holding that the prosecution failed to furnish any proper or satisfactory explanation for the inordinate delay in filing the charge sheet and that PW2 did not support the case of the prosecution and that in the absence of any corroborative evidence, the accused could not be convicted solely on the basis of the testimony of the official witnesses.

07. In cases of acquittal, the Hon'ble Supreme Court in ***Ravi Sharma v. State (Government of NCT of Delhi) and another***[1], held that while dealing with an appeal against acquittal, the appellant Court has to consider whether the trial Court's view can be termed as a possible one, particularly when evidence on record has been analyzed. The reason is that an order of acquittal adds up to the presumption of innocence in favour of the accused. Thus, the appellate court has to be relatively slow in reversing the order of the trial court rendering acquittal.

08. In ***Ghurey Lal v. State of Uttar Pradesh***[2] the Hon'ble Supreme Court after referring to several Judgments regarding the settled principles of law and the powers of the appellate Court in reversing the order of acquittal, held at para 70, as follows:

> *"70. In the light of the above, the High Court and other appellate Courts should follow the well-settled principles crystallized by number of Judgments if it is going to overrule or otherwise disturb the trial court's acquittal."*
> *1. The appellate court may only overrule or otherwise disturb the trial court's acquittal if it has "very substantial and compelling reasons" for doing so.*
> *A number of instances arise in which the appellate court would have "very substantial and compelling reasons" to discard the trial court's decision. "Very substantial and compelling reasons" exist when:*
> *i) The trial court's conclusion with regard to the facts is palpably wrong:*

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[1] (2022) 8 Supreme Court Cases 536
[2] (2008) 10 Supreme Court Cases 45

ii) The trial court's decision was based on an erroneous view of law;

iii) The trial court's judgment is likely to result in "grave miscarriage of justice";

iv) The entire approach of the trial court in dealing with the evidence was patently illegal;

v) The trial court's judgment was manifestly unjust and unreasonable;

vi) The trial court has ignored the evidence or misread the material evidence or has ignored material documents like dying declarations/report of the ballistic expert, etc.

vii) This list is intended to be illustrative, not exhaustive.

2. The appellate court must always give proper weight and consideration o the findings of the trial court.

3. If two reasonable views can be reached one that leads to acquittal, the other to conviction the High Courts/appellate courts must rule in favour of the accused."

09. For the foregoing reasons as well as the principles laid down by the Hon'ble Apex Court in the judgments cited supra, the learned Magistrate has rightly acquitted the respondent/accused for the offences punishable under Sections 16(1) (a) (i) 7(i) and 2 (ia) (m) of PFA Act. 1954. Hence, this Court does not find any grounds to interfere with the well reasoned Judgment of the learned Magistrate.

10. Accordingly, the Criminal Appeal is dismissed. There shall be no order as to costs.

As a sequel, miscellaneous petitions, pending if any, shall stand closed.

SD/- MOHD.ISMAIL
DEPUTY REGISTRAR

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SECTION OFFICER

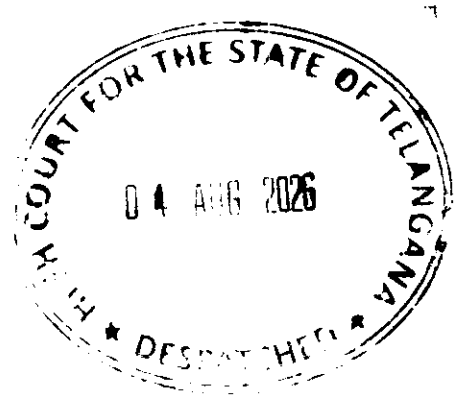
To,

1. The Additional Judicial Magistrate of First Class, Huzurabad.
2. Two CCs to Public Prosecutor, High Court for the State of Telangana at Hyderabad [OUT]
3. One CC to Sri Y Narapa Reddy, Advocate [OPUC]
4. Two CD Copies

ABK/KA

HIGH COURT

DATED: 25/06/2026



JUDGMENT

CRLA.No.741 of 2016

DISMISSING THE CRLA WITHOUT COSTS

7 EPS
24/7/26